



Procedure No: EXP202401528 (PS/00197/2024)

RESOLUTION OF APPEAL FOR RECONSIDERATION No RR/00796/2024

Examined the appeal for reconsideration filed by the entity ALL IN DIGITAL MARKETING, S.L., with NIF: B88369178 (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection on 11/11/24, in procedure EXP202401528 (PS/00197/2024), for violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter, LSSI) and based on the following:

FACTS

FIRST: On 11/11/24, the Director of the Spanish Agency for Data Protection issued a Resolution in Procedure EXP202401528 (PS/00197/2024), opened against the entity ALL IN DIGITAL MARKETING, S.L. with NIF: B88369178, for the violation of Article 21 of the LSSI, classified in Article 38.4.d) of the aforementioned regulation, with a fine of 5,000 euros (five thousand euros), for sending advertising emails without having been requested or expressly authorized.

The notification was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), through electronic notification on 13/11/24, as recorded in the acknowledgment of receipt included in the file.

SECOND: The following proven facts were recorded:

"First: The file contains the following documentation provided by the complainant:

- Dated 14/09/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address allzoners@allzone.es, containing the following message:
 - o "Good afternoon, I have canceled my registration to receive your emails through the link that appears at the bottom of your emails about 10 times and I continue to receive them, so I request that you immediately remove me from your distribution list or I will take action."
- Dated 19/09/23, a copy of the email sent from the address allzoners@allzone.es to the email address ***EMAIL.1, with the subject: "LAST DAYS. Participate now and get this pack or trip to Paris for FREE" and the following message:
 - o "APPLE PACK RAFFLE. - Vote for us..."

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- Dated 19/09/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address allzoners@allzone.es, containing the following message:
 - o "I see that I continue to receive emails without having been unsubscribed. I will wait the time set by the Law for it to take effect; if after that time I continue to receive emails from you, I will proceed to file the corresponding complaint with the AEPD."
- Screenshot of the "Privacy Policy" page of the website <https://allzone.es>, (<https://allzone.es/content/2-politica-de-privacidad>) where it can be read, among other things, the following:
 - o (...) The holders of the personal data obtained may exercise their rights of personal data protection by sending a written communication to the registered office of ALL IN DIGITAL MARKETING SL or to the email address designated for this purpose, delegadodatos@allindigital.es, including in both cases a photocopy of their ID on both sides or the signed authorization of their legal representative (...).
- Dated 19/09/23, a copy of the email sent from the complainant's address ***EMAIL.1 to the email address delegadodatos@allindigital.es containing the following message:
 - o "By this email, I attach documentation for you to proceed to unsubscribe me from the distribution list of advertising emails since using the link at the bottom of the emails I receive and responding to that same address requesting the unsubscribe has not been effective."
- Dated 21/09/23, 05/10/23, 12/10/23, 02/11/23, 09/11/23, 14/11/23, 24/11/23, 25/11/23, 14/12/23, 19/12/23, and 23/12/23, copies of the emails sent from the email address allzoners@allzone.es to the

address ***EMAIL.1 containing advertising messages, such as the following:

o RAFFLE. Your new Apple companion. We value you and have a prize. Last hours! We want to thank you for your trust; for this, we can think of no better gift than to offer you the chance to win this incredible gift. Get this APPLE combo COMPLETELY FREE now (...).

Second: The file contains the following documentation provided by the defendant:

- Screenshot of the "empty" customer registration form on the website www.allzone.es (home → your account) where it can be verified how the

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The options "subscribe to the newsletter" and "I have read and accept the Privacy Policy" are initially unchecked.

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Screenshot of the "Client File" of the claimant where it can be read, among other information, the following:

Status:

13/07/2020 Active

14/09/2023 Inactive

17/09/2023 Active

19/09/2023 Inactive

20/09/2023 Active

02/02/2024 Inactive

Last emails sent:

02/02/2024 09:32:45

20/09/2023 19:04:37

19/09/2023 08:51:23

17/09/2023 23:30:44

14/09/2023 06:18:55...

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Dated 13/07/20 copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

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Dated 13/09/23 copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE BEEN SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

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Dated 17/09/20 copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

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Dated 19/09/23 copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE BEEN SUCCESSFULLY UNSUBSCRIBED FROM OUR NEWSLETTER.

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Dated 20/09/20 copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., THANK YOU FOR SUBSCRIBING TO OUR NEWSLETTER.

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Dated 02/02/24 copy of the email sent from the address AllZone no-reply-info@allzone.es to the address ***EMAIL.1 with the following message: HELLO A.A.A., YOU HAVE BEEN SUCCESSFULLY

UNSUBSCRIBED FROM OUR NEWSLETTER.

THIRD: Dated 12/12/24, a written appeal for reconsideration was received at this Agency, presented by the appellant, in which the following was stated:

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"First. – We reiterate all and each of the allegations we have maintained throughout the procedure. Briefly described, they have consisted of addressing the unsubscribe requested by the claimant on all occasions when he requested it.

It has been proven that when the claimant, a user of our services since 13/07/2020, requested to be unsubscribed, this was carried out by All In Digital Marketing S.L. It has also been proven that the claimant returned, on several occasions, to log into our system, which led to the fact that given the general terms and conditions of contracting published on our website, the claimant knew, and was fully aware, thereby giving his consent, that such a matter would lead to new advertising communications. Upon requesting to unsubscribe again, this was done again, and this occurred on all occasions detailed in the resolution being appealed.

No communication was sent during the periods of inactivity, thus complying with the claimant's wishes, and only when he logged back into the website of the appellant did the process, if we may say so, become tautological again.

Therefore, we consider that upon receiving communication on 19/09/2023 from the claimant to unsubscribe from the receipt of emails, he was unsubscribed on the same date, which undoubtedly proves our willingness to comply with the right of said claimant, who with the vicissitudes recorded in the file, we understand that this entity is not deserving of the imposed sanction.

There exists a prior contractual relationship, since 13/07/2020, which allows us to invoke what is provided in article 21.2 of the LSSI.

Second. - We understand that the imposed sanction improperly applies the criteria established in article 40 of the LSSI, given that contrary to what is established in the resolution being appealed, article 39.bis of the LSSI states: Article 39 bis. Moderation of sanctions. The sanctioning body shall establish the amount of the sanction applying the scale relative to the class of infractions that immediately precedes in severity that in which the considered case is integrated, in the following cases:

- a) When a qualified reduction of the culpability of the accused or of the unlawfulness of the act is appreciated as a consequence of the significant concurrence of several of the criteria stated in article 40.
- b) When the infringing entity has diligently regularized the irregular situation.
- c) When it can be appreciated that the conduct of the affected party may have induced the commission of the infringement.
- d) When the infringer has spontaneously acknowledged his culpability.
- e) When a merger by absorption has occurred and the infringement was prior to that process, not being attributable to the absorbing entity.

Article 40. Graduation of the amount of sanctions. The amount of the fines imposed shall be graduated according to the following criteria:

- a) The existence of intent.
- b) The period of time during which the infringement has been committed.
- c) The recurrence of the commission of...

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violations of the same nature, when this has been declared by a firm resolution. d) The nature and extent of the damages caused. e) The benefits obtained from the violation. f) The volume of business affected by the committed violation. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed violation, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies. h) The adoption of measures to mitigate or repair the damage caused by the violation. The sanction is limited to stating that "there is intent," reasoning that such intent arises because the claimant has attempted to unsubscribe from the advertising email list of this entity, both through the existing link and through the Data Protection Officer of this entity, but continues to receive emails. Intent is, according to the regulation, a circumstance, among others, to mitigate the sanction.

The resolution being appealed ignores Article 40 of the LSSI to quantify the intensity of the sanction, namely: a) intent (applied in the contrary sense), b) it does not evaluate the time period during which the violation has occurred, c) it does not assess the absence of prior offenses, d) it does not evaluate the conduct of the affected party, who was satisfied with their claim upon first request, and upon re-entering the system of the appellant here, caused them to receive emails again, e) it also does not assess the resolution the absence of prejudice, f) it ignores that no benefit has been obtained by my client, and h) it also does not refer to the resolution that All In Digital S.L. has always tried to satisfy the claimant, thus mitigating the violation.

For the reasons stated, I REQUEST THE DIRECTOR OF THE AEPD: To consider the appeal for reconsideration against the resolution of November 11, 2024, and, granting it, issue another that, on the contrary, nullifies it, or, subsidiarily, reduces it to the minimum applicable legal limit.

LEGAL GROUNDS

I

Competence.

The competent authority to resolve this appeal is the Presidency of the Spanish Agency for Data Protection, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) and Article 43.1, second paragraph, of the LSSI.

II

Response to the allegations

In relation to the statements made in the appeal, the following should be noted:

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First: Regarding the effective removal of the claimant's data and the reiteration of their re-entry into the system.

As a preliminary matter, it is important to recall that in the complaint submitted by the claimant, they stated that after receiving a multitude of advertising emails sent by the entity, now the appellant, they requested, both in response to those emails and through the address provided in the privacy policy available on their website, to be removed from the advertising email distribution systems on three occasions. However, despite this request, they continued to receive such commercial communications. The complaint was accompanied by copies of the emails sent by the claimant requesting their removal from the distribution list, as well as the advertising emails received after those requests.

The entity now claims that the claimant was removed on all occasions when they requested it and that subsequently, when they re-entered their system, given the general terms and conditions published on the website, the claimant knew, and was fully aware, "thereby giving their consent," that this would result in new advertising communications, which would justify the reactivation of the commercial communication sends.

However, such a statement is not adequately substantiated in the file, as it is evident that from the documentation provided by the claimant along with their complaint, the emails sent on 14/09/23 and 19/09/23 to the address allzoners@allzone.es stand out, in which they express their explicit desire not

to receive any more advertising emails, warning of the possibility of taking measures if the sending of such communications persists and even, on the same day 19/09/23, the claimant sent another email to the Data Protection Officer of the entity, at the address delegadodatos@allindigital.es, requesting for the third time to be removed from the advertising email distribution list.

On the contrary, from the documentation provided by the appellant entity, specifically from the document titled "Client File," it appears that the claimant is listed as "removed" on 19/09/23 and in "active" status in the system on 20/09/23, after which they received up to 11 advertising emails on subsequent dates, but no evidence is provided to prove that the claimant gave their express consent to receive commercial advertising again after having stated their desire not to receive any more commercial communications up to three times. That is, no evidence is provided that could demonstrate that the claimant again gave their express consent to receive commercial communications.

In this regard, Article 21 of the LSSI indicates that the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipient is prohibited, and in the case at hand, the revocation of consent by the claimant was clear, reiterated, and documented, without the appellant ceasing to send commercial communications, so that, in this case, the allegations presented on this point cannot be taken into account.

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Second: Regarding the application of Article 40 of the LSSI.

As a preliminary matter, it is appropriate to recall that, in the resolution of the sanctioning file (PS/00197/2024), it was considered to adjust the sanction to be imposed according to the aggravating criterion established in Article 40.a) of the LSSI: "The existence of intentionality (paragraph a), as it is established that the complainant has attempted to unsubscribe from the list of advertising emails of the entity being complained about on several occasions, both through the link provided in the received emails and through the Data Protection Officer of the entity, but continues to receive advertising emails."

The entity being complained about argues that the imposed sanction did not correctly assess the criteria for adjusting the sanction under Article 40 of the LSSI, claiming, among other things, that there is no intentionality, that no benefits have been obtained, and that the conduct of the affected party has influenced the infringement. However, these allegations cannot be taken into account for the following reasons:

First, the appellant persisted in sending commercial emails despite receiving up to three clear and unequivocal requests from the complainant to unsubscribe, which demonstrates at least negligent conduct, if not deliberate.

According to Article 40.b of the LSSI, the duration of the infringement is a criterion to be considered in the adjustment of the sanction. Let us recall that the complainant requested to unsubscribe on 14/09/23, reiterating this request on 19/09/23, without any effect, continuing to receive commercial communications until 23/12/23. This is a period of more than three months, which evidences a persistence in the infringing conduct, but we must remember that this was not considered as an aggravating factor in the resolution, nor can it be considered as a mitigating factor.

The appellant entity claims that it has no sanctioning history, which should be considered as a mitigating factor. However, the absence of recidivism does not exempt from responsibility nor justifies a reduction of the sanction. In fact, Article 40.c of the LSSI establishes that recidivism is an aggravating factor, but does not contemplate the lack of prior records as a mitigating factor.

The appellant entity asserts that no harm has been caused to the complainant; however, Article 40.d of the LSSI does not limit harm to economic damages, but encompasses any impact arising from non-compliance with the regulations. The existence of harm does not require the complainant to prove a specific damage, but rather that the impact on their fundamental rights is assessed.

The appellant entity claims that it has not obtained benefits from sending advertising emails; however,

the very persistence in sending advertisements indicates a commercial purpose aimed at generating potential profit. Thus, valuing the absence of benefits as a mitigating factor would nullify the deterrent effect of the fine, as it diminishes the effect of the circumstances that effectively influence its quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that violating the norm without obtaining benefits, financial or otherwise, is acceptable.

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that it may cause, will not produce a negative effect proportional to the severity of the infringing act. The appealing entity mentions that it has tried to satisfy the claimant and correct the situation; however, the lack of a diligent response in managing the claimant's definitive withdrawal demonstrates that the company did not adopt effective measures in a timely manner to mitigate the infringement. Finally, the appealing entity seeks to invoke the moderation of sanctions provided for in Article 39 bis of the LSSI, but this is not applicable in this case, as none of the circumstances provided for in that article significantly concur, since there is no qualified reduction of culpability or unlawfulness of the conduct, given that the infringement is evident by sending commercial communications after having requested on three occasions their desire not to receive them again. There has not been a diligent regularization of the irregular situation, as the claimant had to repeatedly insist on their withdrawal request without obtaining an effective response. It has not been proven that the conduct of the affected party induced the commission of the infringement, as the company has not demonstrated that the user granted new consent after requesting withdrawal, and finally, the infringer has not spontaneously acknowledged their culpability, but rather, on the contrary, has attempted to shift the responsibility to the claimant.

III

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive. Nevertheless, and despite the time elapsed, the AEPD is obliged to issue an express resolution and notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned Law.

In cases of dismissal due to administrative silence, the express resolution after the expiration of the deadline will be adopted by the Administration without any binding connection to the meaning of the silence, as provided in Article 24.3 of the same law. Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appealing party has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution; therefore, in view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity ALL IN DIGITAL MARKETING, S.L. with NIF: B88369178 against the resolution issued by the Director of the Spanish Agency for Data Protection on 11/11/24, in the procedure EXP202401528 (PS/00197/2024).

SECOND: TO NOTIFY this resolution to the entity ALL IN DIGITAL MARKETING, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article

46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso,

President of the Spanish Agency for Data Protection

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